

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

August 10, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.		
51.		
52.	Soto v. YPJK Management Inc. 2025-01489927	<i>Demurrer</i> Defendant YPJK Management, Inc. dba Tokai Sushi demurrer to the 1st through 11th causes of action of the First Amended Complaint of Esteban Soto is SUSTAINED in part and OVERRULED in part as follows: The demurrer is SUSTAINED as to the 4th cause of action. To prevail on a failure to engage in the interactive process claim under Cal. Gov't Code § 12940(n), a plaintiff must identify a reasonable accommodation that would have been available at the time the interactive process should have occurred. <i>Shirvanyan v. Los Angeles Community College Dist.</i> (2020) 59 Cal.App.5th 82, 96. While an employee cannot necessarily be expected to identify all possible accommodations during the interactive process itself, once litigation begins the employee must be able to identify an available accommodation that the interactive process should have produced. <i>Scotch v. Art Institute of California</i> (2009) 173 Cal.App.4th 986, 1018-1019. The allegations of the 4th cause of action do not identify a reasonable accommodation that would have been available at the time the interactive process should have occurred. The demurrer to the remaining causes of action is OVERRULED. The claims are properly alleged. <i>Motion to strike</i> Defendant's motion to strike is GRANTED in part and DENIED in part. The motion is GRANTED as to the punitive damages allegations contained in paragraphs 36, 52, 67, 90, 97, and 107, and Prayer for Relief 4. Plaintiff hasn't alleged sufficient specific allegations against defendant to support the punitive damages claimed. The motion to strike is DENIED as moot as to paragraph 82. The motion to strike is DENIED as to "all references to emotional distress damages." Defendant argues the allegations should be stricken simply because there is nothing in the prayer of the First Amended Complaint that seeks

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		emotional distress damages. But in <i>Young v. Bank of America</i>, (1983) 141 Cal.App.3d 108, 114, the court held that damages for pain, suffering, and emotional distress are general damages which need not be specifically pleaded in the prayer for relief. In other words, emotional distress allegations in the body of the complaint can support recovery even without a corresponding prayer. Plaintiff shall file an amended complaint, if any, within ten days of this order. The case management conference is continued to January 25, 2027 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.
53.		
54.	Williams v. Allegis Group, Inc. 2023-01330124	Defendant The Procter & Gamble Company's Motion to Set Aside Default and Default Judgment is GRANTED. (Code Civ. Proc. §473, subd. (d).) Moving Defendant has shown that valid service of process was not achieved over it, so any ensuing default and/or default judgment is void. The default judgment entered on 11/12/25 is hereby VACATED. Moving Defendant's default entered on 6/6/24 is hereby SET ASIDE. The case management conference is scheduled for January 25, 2027 at 9:00 a.m. in Department C28. Defendant Procter & Gamble shall provide notice.
55.	Hussien v. Alonso 2025-01534468	Specially appearing defendants Hidalgo Daniel Alonso and Patricia Hidalgo's motion to quash service of summons is GRANTED. (Code Civ. Proc., § 418.10, subd. (a) [authorizing motion]; <i>Dill v. Berquist Const. Co., Inc.</i> (1994) 24 Cal.App.4th 1426, 1439 [proper service of summons is required for the court to obtain jurisdiction over a defendant]; <i>Mihlon v. Superior Court</i> (1985) 169 Cal.App.3d 703, 710 [plaintiff has burden of proof to demonstrate jurisdiction is proper].) Moving parties' evidence is sufficient to rebut any presumption of proper service established by the proofs of service of the summons and complaint filed by plaintiff in this action (ROA 10, 12). (Evid. Code, § 647 ["The return of a process server registered pursuant to Chapter 16 (commencing with Section

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		22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return”]; <i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 390 [“registered process server's declaration of service establishes a presumption affecting the burden of producing evidence of the facts stated in the declaration,” in which case “defendant [is] thus required to produce evidence that he was not served”).) Moving defendant Patricia Hidalgo avers: “I did not reside, abide, conduct business, or used as a mailing address 8209 Comolette Street, Downey, CA on March 5, 2026” [i.e. the date of sub service on the POS]. (P. Hidalgo Decl., ¶ 1.) Thus, this defendant has shown that the substitute service did not occur at her “dwelling house, usual place of abode, usual place of business, or usual mailing address,” as required for substitute service. (Code Civ. Proc., § 415.20, subd. (b).) Both defendants also present evidence that “Fredy Hidalgo,” the person purportedly served as substitute service, does not reside at the address of service, and was not present at the time of purported service. (P. Hidalgo Decl., ¶ 2 and 3; D. Hidalgo Decl., [second] ¶ 1, ¶ 2; F. Hidalgo Decl.) Thus, both defendants have shown that service was not made “in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address,” as also required for substitute service. (Code Civ. Proc., § 415.20, subd. (b).) Plaintiff has not provided any evidence showing that substitute service was properly effected on either party, as is his burden. (<i>Mihlon v. Superior Court</i>, <i>supra</i> at 710.) Accordingly, the motion is GRANTED as to both defendants. The Opposition requests leave to re-serve plaintiffs, which leave is unnecessary on these facts. (<i>GMS Properties, Inc. v. Superior Court</i> (1963) 219 Cal.App.2d 407, 410 [“there is nothing in the law which forbids a second and successful attempt to serve a party in a pending law suit, after the elimination of the factor which justified the original ruling ... the effect of granting a motion to quash service is to declare the service void and not to dismiss the complaint;” internal citation and quotation marks omitted].) In addition to the foregoing, in reviewing the Opposition brief, it appears that plaintiff’s counsel has used a generative artificial intelligence (AI) tool without verifying the authorities or citations provided, or otherwise cited authorities to the

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		court without confirming their accuracy. AI “hallucinations” are either legal authorities that are entirely made up by an AI tool, or citations to real cases that do not include the quote or stand for the proposition for which AI cites them. (See <i>Noland v. Land of the Free, L.P.</i> (2025) 114 Cal.App.5th 426 [“<i>Noland</i>”].) <i>Noland</i> makes clear attorneys have the duty to verify the accuracy of all representations and authorities they present to the court, regardless of whether generated by AI or some other source. (<i>Id.</i> at 445-446.) Here, for example, the Opposition cites <i>Trackman v. Kenney</i> (2010) 187 Cal.App.4th 175, 183 [<i>Trackman</i>], for the proposition that “[t]he Court of Appeal has specifically cautioned that courts should not routinely quash service based solely on the interested parties’ denials,” and attributes the following quote to <i>Trackman</i>: “If we were to hold otherwise, a defendant could defeat substituted service in virtually every case simply by filing a declaration denying residence at the address served.” (Opposition at 4:19-26.) The court is unable to find that quote at either the cited page reference or anywhere else in the opinion. Moreover, moving party in <i>Trackman</i> did not argue that service was defective because he did not reside at the address of service; rather, moving defendant there conceded his tenant had advised that “legal papers had been served” at that address (<i>Id.</i> at 179), but argued that identifying the tenant as “John Doe” was insufficient, which argument was rejected by the <i>Trackman</i> Court (<i>Id.</i> at 184–185). The Opposition also cites <i>Khourie, Crew & Jaeger v. Sabek, Inc.</i> (1990) 220 Cal.App.3d 1009 [<i>Khourie</i>], for the proposition that a party’s claim of non-receipt of mailed process is insufficient to rebut a presumption of mailing. (Opposition at 4:9-15.) However, moving defendant in <i>Khourie</i> challenged the physical service itself, but did not argue that the subsequent mailing was deficient, or that the subsequent mailing was never received. The Opposition also cites <i>Pasadena Medi-Center Associates v. Superior Court</i> (1973) 9 Cal.3d 773, for the proposition that the “court has discretion to allow re-service rather than dismiss.” (Opposition at 5:27-28.) However, that case did not hold that the trial court has discretion to allow re-service where a motion to quash is granted; indeed, the motion to quash was denied. Based on the foregoing, plaintiff’s counsel should appear at the hearing prepared to address whether the court should issue an order to show cause why counsel should not be

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		sanctioned or reported to the State Bar for presenting AI hallucinations or otherwise failing to confirm the representations counsel makes to the court. If the court decides to issue an order to show cause, a separate hearing will be set. The case management conference is continued to January 25, 2027 at 9:00 a.m. in Department C28. Moving parties shall give notice of this ruling.
56.	Natfund II LLC v. Aryabhata Group LLC 2025-01521675	Third Party Intervenor Pacific High Yield Fund I, LLC's unopposed Motion for Leave to Intervene is GRANTED. "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. However, a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice. Evidence or declarations may be filed with the motion to expunge the notice." (Code Civ. Proc., § 405.30.) "A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests." (Code Civ. Proc. § 387(c).) Intervenor is the current owner of the Property at issue and disputes the validity of the lis pendens. As such, Intervenor has a sufficient interest in the litigation to allow intervention. A property owner whose property has been mistakenly encumbered by a lis pendens clearly has such an interest, as the lis pendens "acts as a cloud against the property, effectively preventing sale or encumbrance until the litigation is resolved or the lis pendens is expunged." (<i>Amalgamated Bank v. Superior Court</i> (2007) 149 Cal.App.4th 1003.) The motion is unopposed. Although Intervenor has not attached a copy of the proposed answer, the court GRANTS the motion and ORDERS Intervenor to separately file the answer in intervention within ten days. Intervenor shall give notice in accordance with Code Civ. Proc. § 387, subd. (e).

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57.	Flores v. Hyundai Motor America 2023-01343056	Plaintiff Sidney Flores' motion for attorney fees is DENIED. The moving papers do not identify any amount of fees sought, nor provide any evidence as to the time incurred, or how any claimed time incurred was reasonable or necessary. (<i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 49 [party seeking attorney fees has the burden of proof as to the reasonableness and necessity of same]; <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1320 [party seeking attorney fees "bear[s] the burden of establishing entitlement to an award and <u>documenting</u> the appropriate hours expended and hourly rates ... [t]he <u>evidence</u> should allow the court to consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended;" emphasis added, internal citation omitted].) The court observes that moving party's counsel has filed two previous fee motions, which also suffered from evidentiary deficiencies. (ROA 56, 58, 59 [first fee motion, denied without prejudice 11-10-26]; ROA 64, 66 [second fee motion, withdrawn by moving party].) The court declines to consider plaintiff's "Notice of Errata" (ROA 98) addressing this issue, which was not filed until 8-3-26, after defendant had filed an opposition. (<i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765 [court's discretion to refuse to consider late-filed papers]; <i>Rancho Mirage Country Club Homeowners Assoc. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262 [same]; see also <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538 [ordinarily, new evidence presented for the first time on Reply is not considered, unless the opposing party has notice and an opportunity to respond].) Defendant shall give notice of this ruling.
58.	Martinez v. American Honda Motor Co. Inc. 2024-01419984	Plaintiff Eudardo Martinez' Motion for Attorney Fees is GRANTED. Defendant argues that Plaintiff's motion is not timely filed, pursuant to Cal. Rules of Court, Rule 3.1702, subd. (b)(1). Defendant argues that at the latest, Plaintiff had until 5/13/26 to file this motion, consisting of 180 days from the entry of the dismissal of this action on 11/14/25. The court does not have to reach that issue, as the court finds good cause to extend any time to file under Rules of Court, Rule 3.1702(d). ("For good cause, the trial judge may extend the time for filing a motion for attorney's fees in the absence

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		of a stipulation or for a longer period than allowed by stipulation.” Rules of Court, Rule 3.1702(d); “Rule 3.1702(d) is ‘remedial’ and is to be given a liberal, rather than strict interpretation. [Citation.]” (<i>Lewow v. Surfside III Condominium Owners Assn., Inc.</i> (2012) 203 Cal. App. 4th 128, 135.) Defendant General Motors, LLC shall pay \$18,453.75 in reasonable attorney fees. (See Civ. Code §1794, subd. (d) [Song-Beverly attorney fees]; <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095-1096 [lodestar; trial court’s discretion]; <i>Reynolds v. Ford Motor Company</i> (2020) 47 Cal.App.5th 1105, 1112 [same]; Jacobson Decl. ¶¶ 91-93 [hours spent], 68-90 [description of services performed]; 3-6; 44-46, 48, 50, 52, 54, Ex. 38, 39 [justification for hourly rates sought], and Ex. 40 [timekeeping records].) The attorney fee award consists of the reasonably expended hours of work at the reasonable hourly rates sought by timekeepers listed in the motion at their requested rates. Plaintiff has adequately established a basis for the reasonableness of the hourly fees requested by providing evidence of each timekeeper’s experience and qualifications and reference to rates charged by other lemon law attorneys in the Orange County market. The court credits the accuracy of Moving Party’s time records. (See <i>City of Colton v. Singletary</i> (2012) 206 Cal.App.4th 751, 784-785.) However, the court has reviewed the provided timekeeping records and finds that there were several instances where Plaintiff’s request exceeded the hours reasonably necessary to accomplish the tasks listed. The court’s fee award has excised the hours the court finds to have been unreasonably spent. The court declines to award a multiplier. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138 [trial court discretion to award multiplier].) This was a standard lemon law case. Counsel’s skill and contingency risk are reflected in the reasonable hourly rates described above. Defendant’s evidentiary objections are OVERRULED. Plaintiff shall give notice of this ruling.
59.	Mikhael v. Physician Partners of	Plaintiff Medhat Mikhael, MD’s Application for a Right to Attach Order and order for issuance of a Writ of Attachment (“Application”) against defendant is DENIED. (Code Civ. Proc. §483.010, subd, (a).)

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	America, LLC 2026-01550474	"Under Code of Civil Procedure section 483.010, a prejudgment attachment may issue only if the claim sued upon is (1) a claim for money based upon a contract, express or implied; (2) of a fixed or readily ascertainable amount not less than \$500; (3) either unsecured or secured by personal property, not real property (including fixtures); and (4) commercial in nature." (<i>Goldstein v. Barak Construction</i> (2008) 164 Cal.App.4th 845, 852.) Plaintiff must also establish the probable validity of its claim. (<i>Id.</i>) The application must be supported by an affidavit or declaration showing that the applicant, on the facts presented, would be entitled to a judgment on the claim upon which the attachment is based. (<i>Lydig Construction, Inc. v. Martinez Steel Corp.</i> (2015) 234 Cal.App.4th 937, 943-944.) Here, Plaintiff has shown that the application is based upon a claim for money based upon an express contract--namely, the Fifth Cause of Action for Breach of Contract arising out of Plaintiff's exercise of his "put option." (Mikhael Decl., Exh. B.) Plaintiff has shown that the amount of the claim is readily ascertainable by reference to the terms of the contract that involved granting Plaintiff 79,064 Class A Units of TOPCO, which were valued at \$25.30 per share (Exh. B, ¶ 2.2) and that such units would vest and be repurchased by TOPCO either over a 5 year period following the execution of the agreement (¶ 3.1) or the occurrence of a defined event that would trigger acceleration of the vesting. (¶ 3.2.1.) Plaintiff must also make an evidentiary showing of the probable validity of the claim. (Code Civ. Proc. §484.090, subd, (a)(2).) Cal. Code Civ. Proc. §481.190 states, "A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." The elements of a claim for breach of contract are (1) the existence of a contract; (2) the plaintiff's performance or excuse from performance of the contract; (3) the defendant's breach; and (4) resulting damages to the plaintiff. (See <i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Plaintiff has failed to establish the probable validity of the contract claim with admissible evidence. Plaintiff asserts termination without cause to trigger accelerated vesting. Section 4.2 describes that Plaintiff must sign the attached Separation Agreement within 60 days lest the accelerated

[illegible]